

to be delivered, is \$5,000 or less. \$90,000 far exceeds that limit, therefore, the proposed plan is illegal. Petitioner will need to determine a different plan for the net proceeds. Petitioner is ordered to carefully review Item 18 along with the relevant portions of the Probate Code and California Rules of Court in order to determine which plan is in the best interest of the minor. The most common methods are funding a blocked account or purchasing an annuity. If the new plan is to fund a blocked account, Petitioner must provide a proposed Order to Deposit Funds in Blocked Account (Form MC-355) and Attachment 18.b.(2) must be attached to the Amended Petition. If the new plan is to purchase an annuity, Petitioner will need to provide the purchase agreement for the annuity that includes all payments to be made over the life of the annuity as Attachment 18.b.(3). Petitioner is reminded that regardless of the plan selected, the Court will require proof that the settlement funded and net proceeds were distributed per the Order Approving Compromise.

- Petitioner did not provide a proposed Order Approving Compromise (Judicial Council Form MC-351) which is a mandatory form.
- No Proof of Service was filed indicating that Defendant was served. Service of the Petition on all parties is necessary.

Due to the extensive issues with the Petition, Petitioner will need to file an Amended Petition that includes all necessary evidence. Time is of the essence as the settlement cannot fund and the minor will not have the ability to receive interest on the settlement until funded.

Additionally, the Court notes that at the last hearing on August 10, 2026, Counsel informed the Court that the Guardian Ad Litem was working on getting an annuity. Because the purchase of annuity is dependent on the net settlement amount, the Court raises the additional issue of the attorney's fee request being higher than average. Counsel requests 40%, which the Court will not authorize in a minor's compromise case that did not go to trial. The Court does not intend to authorize attorney's fees in any amount in excess of 25% and refers Counsel to CRC 7.955. The Court expects that Counsel will provide the necessary declaration and justify any attorney's fee requested when filing the Amended Petition.

An appearance by counsel for Petitioner is necessary on today's calendar. Failing to appear will result in the issuance of an Order to Show Cause Re: Monetary Sanctions.

FALL RIVER VALLEY VOLUNTEER FIRE DEPARTMENT, ET AL. VS. FALL RIVER VALLEY FIRE PROTECTION DISTRICT, ET AL.

CASE NUMBER: 24CV-0206286

Tentative Ruling on Demurrer: Defendants Fall River Valley Fire Protection District, Rick Gomes, and Jody Morgan demur to the First Amended Complaint (FAC) filed by Plaintiffs Fall River Valley Volunteer Fire Protection Department and McArthur Volunteer Fire Department, Inc. on July 6, 2026. Plaintiffs oppose the Demurrer.

Meet and Confer. Defendants have provided evidence of sufficient effort to meet and confer prior to filing the Demurrer.

Request for Judicial Notice. Defendants request the Court take judicial notice of Shasta Local Agency Formation Commission Resolution 2020-09 and Fall River Valley Volunteer Fire Department's California Secretary of State Corporation filing dated March 18, 2022. Plaintiffs did not object. The requests are granted pursuant to Evid. Code §§ 452(b), (c) and (h) and 453.

Merits of Motion. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e).

The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Plaintiff’s FAC alleges causes of action for: 1) Breach of Contract, 2) Breach of Implied Covenant of Good Faith and Fair Dealing, 3) Conversion, 4) Negligence, and 5) Declaratory Relief. Defendant’s Demurrer is made on the ground that the First Amended Complaint does not state facts sufficient to constitute a cause of action. CCP § 430.10(e).

Government Claim. Defendants raise the issue that Plaintiffs vaguely claim that Plaintiffs submitted claims to Defendants outlining their problems and requesting a response. Defendant Fall River Valley Fire Protection District is a public entity, therefore, Defendant Fall River Valley Fire Protection District and its employees are subject to the Government Claims Act. Liability of a public entity is subject to a procedural condition precedent; that is to say, the timely filing of a written claim with the proper officer or body is an element of a valid cause of action against a public entity. *Gong v. City of Rosemead* (2014) 226 Cal. App. 4th 363, 374. The failure to timely present a proper claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity. *State of California v. Superior Court (Bodde)* (2004) 32 Cal. 4th 1234, 1239. Plaintiffs allege in ¶ 26 that “On January 22, 2024, Plaintiffs submitted a claim to Defendants, outlining the problems and requesting a response. Not having heard back, Plaintiffs submitted another claim on July 22, 2024. This complaint followed on October 21, 2024.”

Plaintiffs did not attach a copy of the claims or provide any further detail in the First Amended Complaint. Without either, the Court is unable to determine that the issues raised in the claims are the same as the causes of action alleged in the First Amended Complaint. The Court notes that in ruling on a previous Motion for Judgment on the Pleadings, the motion was granted on the basis that Plaintiffs had failed to allege compliance with the Government Claims Act. The Court granted leave to amend. Knowing this was an issue, Plaintiffs provided only three sentences in this regard with very little detail. The Demurrer to the FAC is sustained on the basis that Plaintiffs have not sufficiently alleged compliance with the Government Claims Act. The Court will grant leave to amend to correct this deficiency. While there is no requirement that a copy of the actual claims be attached to the Second Amended Complaint, that is the general practice and the most efficient manner for the Court to be in a position to evaluate whether Plaintiffs properly alleged compliance with the Government Claims Act.

Common Law Cause of Action. The next issue raised by Defendants is that the Third Cause of Action alleges conversion, which is a common law tort.

Except as otherwise provided by statute:

- (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.
- (b) The liability of a public entity established by this part (commencing with Section 814) is subject to any immunity of the public entity provided by statute, including this part, and is subject to any defenses that would be available to the public entity if it were a private person.

Gov. Code § 815.

- (a) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.
- (b) Except as otherwise provided by statute, a public entity is not liable for an injury resulting from

an act or omission of an employee of the public entity where the employee is immune from liability.
Gov. Code § 815.2.

Plaintiff alleges in ¶ 4 that it is unclear whether Defendant Jody Morgan was acting in her capacity as a representative of Fall Valley, or outside of her capacity as a representative and that she is named in both capacities. To the extent that the Third Cause of Action is alleged against Defendant Jody Morgain in her individual capacity, the Third Cause of Action survives the Demurrer made on that basis. However, as to the remaining Defendants and Jody Morgan in her official capacity, the Demurrer is sustained and there will be no leave to amend.

Failure to Attach Contract. The First, Second, Fourth, and Fifth Causes of Action are all based in some form on the existence of a contract between the parties. Plaintiffs did not attach the contract or include any verbatim terms. Defendants argue that *Otworth v. Southern Pac. Transportation Co.* (1985) 166 Cal. App. 3d 452, 459 holds that in all actions alleging a breach of contract, plaintiffs are required to attach the contract or allege verbatim its terms. Defendants cite to *Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal. App. 4th 394, which reasoned that *Otworth* read more into a statement in *Wise v. Southern Pacific Co.* (1963) 223 Cal. App. 2d 50 than was there and declined to follow *Otworth*. *Otworth* is still good law and has not been overturned by the California Supreme Court. The Court will follow *Otworth* which specifically held that “If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference.” *Otworth v. Southern Pac. Transportation Co.*, *supra* 166 Cal. App. 3d at p. 459. The Demurrer on the basis that Plaintiffs failed to attach the contract or state the verbatim terms is sustained with leave to amend. The most efficient manner in which Plaintiffs can remedy this deficiency is to attach the contract. Should Plaintiffs amend, the Court will be in a position to evaluate any claims by Defendants that Defendants Fall River Valley Fire Protections District is not a party to the contract.

Derivative Action. The Fifth Cause of Action for Declaratory Relief is derivative of the First, Second, and Fourth Causes of Action. For that reason, the same rulings above apply.

The Demurrer is sustained as to the First, Second, Third, Fourth, and Fifth Causes of Action. Leave to amend is granted with the exception of the Third Cause of Action as it relates to Defendant Fall River Valley Fire Protection District, Rick Gomes, and Jody Morgan in her official capacity. Plaintiffs are granted ten days leave to file a Second Amended Complaint. Rather than the Court modifying the proposed Order provided, Defendants shall provide an Order consistent with the Court’s ruling.

IN RE: KNIGHT

CASE NUMBER: 26CV-0211019

Tentative Ruling on Petition for Change of Name: Petitioner Noelle Knight seeks to change her name to Noelle Conger. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file. Additionally, Petitioner checked Item 6 of the Petition, however, based on the rest of the Petition, this appears to be an error. Petitioner will be asked to clarify whether Item 6 was checked in error.

MCCLOSKEY VS. ALMA JEAN JACKSON TRUST & TRUST AGENT, ET AL.

CASE NUMBER: 25CV-0209075

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 30, 2026 to all parties and counsel for timely file a Mandatory Settlement Conference Statement as required by CRC 3.1380(c) and Local Rule of Court 3.04. Both require a party to file a Mandatory Settlement Conference no less than five court days prior to a Mandatory Settlement Conference, which in this matter, was scheduled for